



# CLIENT SERVICE AGREEMENT

Agreement No.: [PB-CSA-YYYY-XXX]

**PRIVATE & CONFIDENTIAL**



This Client Service Agreement ("Agreement") is made and entered into on [DD Month YYYY].

**BETWEEN:**

- 1) **PRINCE DAVID MARCELLS**, trading as **PharmaBridge**, a sole proprietorship operating in Ghana, of Awutu Breku, Central Region, Ghana (the "**Company**"); and
- 2) [**CLIENT PHARMACY NAME**], a licensed pharmacy operating at [Premises Address], Ghana, holding Pharmacy Council premises licence number [Licence No.] (the "**Client**").

*Note: PharmaBridge is not yet a registered limited company. This Agreement is entered into by Prince David Marcells personally, trading as PharmaBridge, as a sole proprietor. If PharmaBridge is later incorporated, this Agreement may be assigned to the incorporated entity under Clause 14.D.*

**WHEREAS:**

- A. The Company operates a pharmaceutical data intelligence and accounting service for licensed pharmacies in Ghana (the "**Services**").
- B. The Client wishes to subscribe to the Services on the terms and conditions set out in this Agreement.

**NOW, THEREFORE**, the parties agree as follows:

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## **CLAUSE 1: ENGAGEMENT AND ELIGIBILITY**

- A. The Company agrees to provide the Services to the Client from the date of this Agreement, and the Client accepts them, subject to the terms of this Agreement.
- B. The Client confirms that it holds a valid premises licence issued by the Pharmacy Council of Ghana and shall keep that licence in good standing throughout this Agreement. The Client shall notify the Company within 7 days if the licence is suspended, revoked, or not renewed.
- C. The person signing for the Client confirms that they have authority to bind the Client.
- D. This Agreement is personal to the Client and may not be assigned or transferred by the Client without the Company's prior written consent.

## **CLAUSE 2: THE SERVICES**

- A. **Data digitization.** Converting the sales, purchase, and expense records the Client submits into organized digital records (CSV or spreadsheet format).
- B. **Analysis and reporting.** Preparing periodic reports from the Client's data, which may include sales summaries, expense breakdowns, restocking insights, and financial statements (income statement, balance sheet, and cash flow statement), delivered as PDF and Excel files.
- C. **Wholesaler price comparison.** Providing price comparison information across the wholesalers covered by the Company's dataset.
- D. **Wholesale hub location data.** Providing location information on the wholesale hubs covered by the Company's dataset.
- E. **FDA product verification.** Checking products against the Ghana Food and Drugs Authority (FDA) database on the Client's request.



F. **Cloud backup.** Storing the Client's submitted records and generated reports in cloud backup so that the Client's records are preserved.

G. **Relationship manager support.** Assigning the Client a PharmaBridge Client Relationship Manager ("CRM") as the day to day point of contact for support and questions.

H. **Financing support records.** On request, compiling up to twelve (12) months of organized sales and financial records in a format the Client may present to lenders or other third parties.

### CLAUSE 3: HOW THE SERVICES WORK

A. **Submission channel.** The Client shall send its records to the Company through the Company's official WhatsApp Business number provided at onboarding (the "**Official Channel**"). Records may be sent as photos of paper ledgers, Excel files, voice notes, or other formats the Company reasonably accepts.

B. **Submission through a CRM.** The Client may hand records to its assigned CRM. The CRM will relay them to the Company through the Company's approved channels within two (2) Business Days of receipt.

C. **Human processing.** The Client understands that the Services are delivered by Company personnel and CRMs and are not an automated self-service application. Records are processed manually by the Company's team.

D. **Turnaround.** Turnaround periods run from the time the Company receives complete and legible records. The Company shall use reasonable efforts to digitize submitted records within [X] Business Days and to deliver periodic reports within [X] Business Days after the end of each reporting period. These are target times and not guarantees.

E. **Support hours.** CRMs will respond to Client messages during [support hours, e.g. 8:00 AM to 8:00 PM daily]. The Company shall use reasonable efforts to respond outside those hours but does not guarantee it.

F. **Channel management.** The Official Channel is currently managed by Company personnel. The Company may introduce automated tools to help process and store submissions on that channel, and shall inform the Client if the way the channel is managed materially changes.

G. **Limits of CRM authority.** CRMs are authorized to onboard clients, collect and relay data, and provide support. A CRM has no authority to:

- i. vary this Agreement or agree any pricing, service terms, or promises not authorized by the Company;
- ii. waive, discount, or refund any fee;
- iii. accept, collect, or hold payment on behalf of the Company; or
- iv. make representations about turnaround times, deliverables, or capabilities beyond what is stated in Company-approved materials or in this Agreement.

Only the Company may vary this Agreement, and only in writing.

### CLAUSE 4: CLIENT RESPONSIBILITIES

The Client shall:

A. submit records regularly and in a reasonably legible and complete form;



- B. ensure that the records it submits are accurate and genuinely reflect its business;
- C. respond within a reasonable time to questions from the Company or its CRM about unclear entries;
- D. send records only to the Official Channel or to its assigned CRM, and not to any person claiming to represent the Company through other channels;
- E. pay the Fees on time through the Company's official payment channels only (see Clause 5); and
- F. not resell, or present as its own service, the Services or the Company's datasets to third parties.

## CLAUSE 5: FEES AND PAYMENT

- A. **Monthly fee.** The Client shall pay the Company a flat fee of **GHS 100 per month** (the "Fee").
- B. **Payment methods.** The Client shall pay through one of the Company's approved billing channels, chosen at signing and changeable by notice:
  - i. a **recurring digital subscription** (mobile money subscription or card subscription), charged automatically each month; or
  - ii. a **monthly invoice** issued by the Company, which the Client pays directly to the Company through the Company's official payment channels.
- C. **No payment to CRMs.** The Client shall not pay any money to a CRM or any other individual on behalf of the Company, whether in cash or otherwise. A payment made to a CRM or any person other than through the Company's official channels is not a payment to the Company. The Client should report any request for such a payment to the Company immediately.
- D. **Due date.** Each invoice is due within [7] days of the invoice date.
- E. **Late payment.** If a payment is more than [14] days overdue, the Company may, after notice through the Official Channel, pause delivery of new reports until the balance is settled. Records already submitted remain stored.
- F. **Fee changes.** The Company may change the Fee on at least [30] days' written notice. If the Client does not accept the new Fee, it may terminate under Clause 12.B before the change takes effect. A change never applies to a month already paid.
- G. **Taxes.** The Fee is [inclusive / exclusive] of any applicable taxes and levies.
- H. **Refunds.** Fees paid for a month in which the Services were delivered are not refundable. If the Company failed to deliver the Services for a month, the Fee for that month will be refunded or credited.

## CLAUSE 6: CLIENT DATA AND DATA PROTECTION

- A. **Client records.** The Client retains ownership of the sales, purchase, and expense records it submits ("Client Data"). The Client grants the Company the right to use Client Data to provide the Services, including through its CRMs.
- B. **Purpose.** The Company shall use Client Data only to provide and maintain the Services, to improve the accuracy of the Services, and to comply with law.
- C. **Anonymized data.** The Company may use Client Data in anonymized and aggregated form, with no way to identify the Client or its customers, for research and market insight, for example price and demand trends. The Company shall not publish or share anything that identifies the Client without the Client's written consent.



**D. Use of CRMs.** The Client consents to its assigned CRM collecting and relaying Client Data to the Company. CRMs act solely as data collection agents of the Company. Under their agreements with the Company, CRMs must keep Client Data confidential, transmit it only through approved secure channels, avoid collecting more data than is necessary, not use it for any purpose of their own, and delete their working copies as required. The Company remains responsible to the Client for its processing of Client Data.

**E. Personal data.** The Parties shall handle personal data in line with the Data Protection Act, 2012 (Act 843). The Client shall submit only the personal data (for example, customer or staff details) that is necessary and shall have a lawful basis for sharing it with the Company. The Company shall process such personal data only for the purposes in this Clause 6.

**F. Data subject requests.** The Company is responsible for responding to requests relating to personal data that it holds. A CRM shall refer any such request to the Company and shall not resolve it independently.

**G. Security.** The Company shall take reasonable technical and organizational measures to protect Client Data, including secure cloud storage and limiting access to personnel who need it.

**H. Breach notification.** If the Company becomes aware of unauthorized access to, disclosure of, or loss of Client Data, it shall notify the Client without undue delay and take reasonable steps to limit the impact.

**I. Return and deletion.** On termination, the Company shall, on the Client's written request made within [60] days, provide the Client's records and reports in a common file format, and shall afterwards delete or anonymize the Client Data, except where law requires it to be retained.

## CLAUSE 7: CONFIDENTIALITY

A. Each Party shall keep the other's non-public business information confidential and use it only for the purposes of this Agreement.

B. This obligation does not apply to information that is public through no fault of the receiving Party, or that must be disclosed by law or a competent authority.

C. The Client shall keep confidential the Company's pricing, methods, templates, and datasets. This Clause survives termination of this Agreement.

## CLAUSE 8: NATURE OF REPORTS AND THIRD PARTY DATA

A. **Not professional advice.** Reports, insights, and financial statements prepared by the Company are management information based on the records the Client provides. They are not audited or reviewed accounts and are not legal, tax, accounting, investment, or financial advice. The Client should consult a qualified professional for those matters.

B. **Reliance on Client records.** The Company's outputs are only as accurate and complete as the records submitted. The Company is not responsible for errors that result from missing, unclear, or inaccurate Client submissions.

C. **Third party reference data.** Price comparison, wholesale hub, and FDA verification information comes from third party and public sources and may be incomplete or out of date. It is provided for guidance. The Client remains responsible for its own purchasing, stocking, and dispensing decisions and for verifying product status directly with the FDA where it matters.



**D. Lenders and third parties.** The Company does not guarantee that any lender, bank, or other third party will accept its records or approve any financing application.

**E. No pharmacy practice role.** The Company does not provide pharmaceutical care, clinical, or dispensing advice. Nothing in the Services replaces the Client's professional and regulatory obligations.

## CLAUSE 9: INTELLECTUAL PROPERTY

A. The Company owns all rights in its tools, templates, report formats, datasets, methods, software, branding, and materials ("**Company Materials**").

B. The Client may use the reports and deliverables prepared for it for its own business purposes, including sharing them with lenders, accountants, and regulators.

C. The Client shall not copy, scrape, resell, or reverse engineer the Company's datasets or Company Materials.

## CLAUSE 10: LIMITATION OF LIABILITY

A. The Company shall provide the Services with reasonable skill and care.

B. To the extent permitted by law, the Company shall not be liable to the Client for any indirect, incidental, special, or consequential loss, including loss of profit, business, or goodwill, even if advised of the possibility of such loss.

C. To the extent permitted by law, the Company's total liability to the Client under this Agreement, whether in contract, tort, or otherwise, shall not exceed the total Fees paid or payable by the Client in the three (3) months immediately preceding the event giving rise to the claim.

D. The Company is not liable for delay or failure caused by events outside its reasonable control, including power or internet outages, telecommunications or WhatsApp service disruption, or mobile money network failures.

E. Nothing in this Clause limits or excludes any liability that cannot lawfully be limited or excluded under the laws of Ghana, including liability for fraud.

## CLAUSE 11: INDEMNITY BY CLIENT

The Client shall indemnify the Company against Losses arising from third party claims that result from the Client's submission of records it knew to be false or misleading, or from the Client's unlawful sharing of personal data with the Company. This Clause survives termination of this Agreement.

## CLAUSE 12: TERM AND TERMINATION

A. **Term.** This Agreement commences on the date set out on page 1 and continues month to month until terminated in accordance with this Clause.

B. **Without cause.** Either Party may terminate this Agreement without cause on [14 / 30] days' written notice to the other. Notice may be given through the Official Channel.

C. **For cause.** Either Party may terminate immediately by written notice if the other commits a material breach and, where the breach can be remedied, fails to remedy it within [14] days of notice.



**D. By the Company, immediately.** The Company may terminate or suspend this Agreement with immediate effect if:

- i. the Client's premises licence is suspended, revoked, or not renewed;
- ii. the Client submits fraudulent records or uses the Services unlawfully; or
- iii. the Client pays or offers to pay a CRM or other individual in breach of Clause 5.C, or colludes with a CRM to obtain a discount or benefit not authorized by the Company.

**E. Effect.** Termination does not affect Fees already due or rights that arose before termination. Clauses 6, 7, 8, 9, 10, 11, 15, and 16 continue after termination.

## **CLAUSE 13: NO INDUCEMENTS**

A. The Company does not authorize CRMs to offer rebates, discounts, gifts, or other inducements to clients. The Client shall not request or accept any such inducement from a CRM.

B. The Client shall report to the Company any CRM who requests payment, requests a fee for onboarding, offers an unauthorized discount, or misrepresents the Services.

## **CLAUSE 14: OTHER**

A. **Notices.** Any notice under this Agreement shall be in writing and is sufficiently served if sent by WhatsApp (including through the Official Channel), email, or personal delivery to the last known contact details of the other Party. It is deemed received two (2) Business Days after being sent.

B. **Variation.** No variation to this Agreement is effective unless agreed by both Parties in writing, except Fee changes under Clause 5.F.

C. **Entire agreement.** This Agreement is the whole agreement between the Parties about the Services and replaces earlier arrangements, discussions, and promotional material.

D. **Assignment on incorporation.** Because PharmaBridge is presently an unregistered sole proprietorship, this Agreement is signed by Prince David Marcells in his personal capacity, trading as PharmaBridge. If and when PharmaBridge is formally incorporated as a limited liability company under the laws of Ghana, the Company may assign this Agreement, and all of its rights and obligations under it, to that incorporated entity by giving the Client written notice. The Client's consent is not required, provided that the incorporated entity assumes all of the Company's obligations to the Client under this Agreement unchanged, including Clause 6 and the Fee. Following the assignment, references to the "Company" shall be read as references to the incorporated entity.

E. **No partnership.** Nothing in this Agreement makes either Party the partner, agent, or employee of the other. CRMs are independent contractors of the Company.

F. **Severability and waiver.** If any part of this Agreement is unenforceable, the rest continues in effect. Failing to enforce a right is not a waiver of it.

G. **Electronic signature.** The Parties may sign electronically or in counterparts, and each counterpart is treated as an original.

## **CLAUSE 15: DISPUTE RESOLUTION**

A. In the event of any dispute, disagreement, or claim arising out of or in connection with this Agreement, the Parties shall first attempt in good faith to resolve the matter through direct, informal negotiation, starting with the Client's CRM and, if unresolved, with the Company.



B. If the dispute is not resolved within fourteen (14) days of one Party notifying the other in writing, either Party may refer the matter to mediation before a mutually agreed mediator or, if none can be agreed, one appointed by the Ghana Arbitration Centre or another recognized alternative dispute resolution body in Ghana.

C. Nothing in this Clause prevents either Party from seeking urgent interim relief from a court of competent jurisdiction where delay would cause irreparable harm.

D. If a dispute remains unresolved sixty (60) days after it was first notified in writing, either Party may proceed to litigation before the courts of Ghana in accordance with Clause 16.

## **CLAUSE 16: GOVERNING LAW AND JURISDICTION**

This Agreement is governed by, and construed and enforced in accordance with, the laws of Ghana. The Parties irrevocably agree that the courts of Ghana have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement, subject to Clause 15.



## Schedule 1: Definitions

**"Business Day"** means a day other than a Saturday, Sunday, or public holiday in Ghana.

**"Client Data"** has the meaning given in Clause 6.A.

**"Company"** means Prince David Marcells, trading as PharmaBridge (a sole proprietorship, pending incorporation).

**"CRM"** means a PharmaBridge Client Relationship Manager, an independent contractor engaged by the Company to onboard and support clients and to collect and relay client data.

**"Fee"** has the meaning given in Clause 5.A.

**"Losses"** means any harm, damages, penalties, charges, costs (including legal or other professional costs), expenses, claims, judgments, demands, and other losses.

**"Official Channel"** has the meaning given in Clause 3.A.

**"Services"** means the services described in Clause 2.

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## Schedule 2: Client and Service Details

| Item                            | Detail                                                                  |
|---------------------------------|-------------------------------------------------------------------------|
| Client pharmacy name            | [ ]                                                                     |
| Premises licence number         | [ ]                                                                     |
| Premises address                | [ ]                                                                     |
| Authorized contact person       | [ ]                                                                     |
| Client phone / WhatsApp number  | [ ]                                                                     |
| Client email (optional)         | [ ]                                                                     |
| Assigned CRM                    | [ ]                                                                     |
| Company Official Channel number | [ ]                                                                     |
| Monthly fee                     | GHS 100                                                                 |
| Payment method                  | [ ] Mobile money subscription [ ] Card subscription [ ] Monthly invoice |
| Reporting period                | Monthly                                                                 |
| Start date                      | [ ]                                                                     |



**IN WITNESS WHEREOF** the Parties have signed this Agreement on the date first above written.

**SIGNATORIES**

Name: ..... (Client)

Title: .....

Signature: .....

Date: .....

Name: Prince David Marcells (trading as PharmaBridge)

Signature: .....

Date: .....